SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 718 of 2022 (YEAR: 2022)

CORAM: N.V. RAMANA, A.S. BOPANNA, HIMA KOHLI

State by (NCB) Bengaluru
... Appellant(s) / Petitioner(s)
Versus
Pallulabid Ahmad Arimutta
... Respondent(s)

Acts Referred:	Narcotic Drugs and Psychotropic Substances Act, 1985, Indian Evidence Act, 1872
Sections:	Section 67 NDPS, Section 37 NDPS

JUDICIAL HEADNOTE & SUMMARY

Held that statements of co-accused recorded under Section 67 NDPS and voluntary disclosure statements cannot form the sole foundation to reject bail.

RATIO DECIDENDI

The Court held that: Held that statements of co-accused recorded under Section 67 NDPS and voluntary disclosure statements cannot form the sole foundation to reject bail. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in State by (NCB) Bengaluru v. Pallulabid Ahmad Arimutta (Criminal Appeal No. 718 of 2022) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Narcotic Drugs and Psychotropic Substances Act, 1985, Indian Evidence Act, 1872, particularly Section 67 NDPS, Section 37 NDPS. Held that statements of co-accused recorded under Section 67 NDPS and voluntary disclosure statements cannot form the sole foundation to reject bail.

OPERATIVE ORDER

ORDER: Decided